



PLANNING &
DEVELOPMENT
2101 O'Neil Avenue
Cheyenne, WY 82001
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cheyennecity.org

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Connor White
Subject: PUDC-26-175 / Orchard Hills – Zoning Map Amendment
Date: September 14, 2026

Background:

The item for consideration is a Zoning Map Amendment (zone change). This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- | | |
|-----------------------------|--------------------|
| • Introduction and Referral | September 14, 2026 |
| • Public Services Committee | September 21, 2026 |
| • Second reading | September 28, 2026 |
| • Public Services Committee | October 5, 2026 |
| • Third and final reading | October 12, 2026 |

Planning Commission Recommendation:

The Planning Commission heard this item at their September 8, 2026, meeting and recommended the Governing Body deny this application.

The Planning Commission Staff report is attached and unchanged.

Public Comment

As of the creation of this memo (September 9, 2026), Staff has received no new inquiries or comments from the public on this project. The project page on the website has received 208 views and no comments.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE, CHANGING THE ZONING CLASSIFICATION FOR LAND LOCATED WEST OF SOUTH GREELEY HIGHWAY, SOUTH OF WEST COLLEGE DRIVE, AND SOUTHWEST OF AND ADJACENT TO THE INTERSECTION OF APPLE STREET AND YORK AVENUE FROM AG – AGRICULTURAL TO LI – LIGHT INDUSTRIAL.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owners of real property located west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue have applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on September 8, 2026, the City of Cheyenne Planning Commission conducted a public hearing and reviewed the proposed zoning map amendment that is the subject of this ordinance.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned zoning map amendment application is hereby approved and the zoning classification of the real property described as:

A PARCEL OF LAND BEING THE SW1/4 OF SECTION 18, TOWNSHIP 13 NORTH RANGE 66 WEST OF THE 6TH PRINCIPAL MERIDIAN, LARAMIE COUNTY, WYOMING AND BEING MORE PARTICULARLY DESCRIBED AS FOLLOWS:

BEGINNING AT THE WEST ONE-QUARTER CORNER OF SECTION 18; THENCE S89°53'10"E A DISTANCE OF 1377.66 FEET; THENCE S89°54'17"E A DISTANCE OF 1317.22 FEET; THENCE S00°14'44"W A DISTANCE OF 2626.16 FEET TO THE SOUTH ONE-QUARTER CORNER OF SAID SECTION 18; THENCE ALONG THE SOUTH LINE OF SAID SECTION 18 S89°59'18"W A DISTANCE OF 2687.83 FEET TO THE SOUTHWEST CORNER OF SAID SECTION 18; THENCE ALONG THE WEST LINE OF SAID SECTION 18 N00°05'31"E A DISTANCE OF 2631.62 FEET MORE OR LESS TO THE POINT OF BEGINNING;

is hereby changed to LI – Light Industrial.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map

amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
Wyoming Tribune-Eagle

CITY OF CHEYENNE

PLANNING & DEVELOPMENT

CITY OF CHEYENNE PLANNING COMMISSION SEPTEMBER 8, 2026 STAFF REPORT

FILE:	PUDC-26-175: Orchard Hills – Zoning Map Amendment (zone change)
REQUEST:	A request to rezone approximately 162.42 acres of land from AG Agricultural to LI Light Industrial.
LOCATION:	West of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue.
AGENT:	Trey Rinne, AVI, P.C.
OWNER:	Orchard Hills LLC
ZONING:	AG Agricultural (assigned zoning upon annexation)
FUTURE LAND USE:	Proposed Mixed-use Employment (Current –Mixed-use Residential)
PURPOSE:	To zone land LI for future development.
PREPARED BY:	Connor White, Planner II



RECOMMENDED MOTION:

Should the associated Future Land Use Map Amendment be recommended for approval:

Move to recommend the governing body **approve** the rezoning of land west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue to LI Light Industrial as shown in the attached zone change map, noting that the project meets the review criteria for approval.

Should the associated Future Land Use Map Amendment be recommended for denial:

Move to recommend the governing body **deny** the rezoning of land west of South Greeley Highway, south of West College Drive, and southwest of and adjacent to the intersection of Apple Street and York Avenue to LI Light Industrial as shown in the attached zone change map, noting that the project does not meet review criteria 1, 2, 5, and 8 – the LI zoning request being incompatible with the future land use designations of Mixed-use Residential and Urban Residential.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from AG Agricultural which will be assigned upon annexation to LI Light Industrial for roughly 162.42 acres of land. The land is currently vacant or used for agricultural purposes. The request to LI Light Industrial is to allow for future industrial development. No specific use has been identified at this time. The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report (PUDC-26-176).

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Residential	County LU – Land Use	Grazing
North	Urban Residential	County LU Land Use, County URLD – Urban Residential Low-density	Single-family Residential, Utility Substation
South	Mixed-use Employment	LI – Light Industrial	Data Center
East	Mixed-use Residential	County LU	Vacant
West	Mixed-use Residential	County LU – Land Use	Vacant, rural residential

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The property is currently designated Mixed-use Residential by the Comprehensive Plan, but a comprehensive plan amendment has been submitted to change the designation of the entire property to Mixed-use Employment.

The current designations anticipate development that is a mix of residential and commercial. As the LI zone encourages industrial uses and practically prohibits residential uses, the LI zoning would not be in accordance with the comprehensive plan for this area. The Mixed-use Employment designation anticipates a mix of industrial and commercial uses, and if the entire property were designated this way the LI zone would be appropriate based on the future land use designation for the subject property.

Support for this application in policies in PlanCheyenne also hinge on the future land use map amendment proposal. For example, policies within PlanCheyenne encourage a balanced mix of uses in the Cheyenne region using the future land use map as a guide (1.1.A), the flexibility to respond to market demands (1.1.B), meeting community housing needs (2.5.A), dispersing housing throughout the community (2.5.B), a business-supportive environment (3.1.C), and providing opportunities for a range of industrial uses (3.5.A).

The proposed zone change for the subject property **does not comply** with review criterion 1 under the current future land use map designations but would **comply** if the concurrent application for future land use map designation change is approved.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

Nearby property is zoned LI in the City to the south. Property directly north is zone County Urban Residential Medium-density. County LU Land Use zoning exists to the east, west and north.

The County LU zone allows for a wide variety of uses, including light industrial uses, but such industry would need conditional use approval in the LU zone.

The proposed LI zoning is compatible with the current surrounding zoning.

Nearby Future Land Use designations include Mixed-use Employment to the south, Urban Residential to the north, and Mixed-use Residential to the east and west. The property is roughly 25% surrounded by Urban Residential and 50% surrounded by Mixed-use Residential. Based on the future land use plans for the area, LI zoning for this parcel would not be considered compatible with surrounding properties. However, should the future land use map be amended, then LI could be considered appropriate: even though the property would still be surrounded on

three sides by Mixed-use Residential and Urban Residential designations, the approved amendment would indicate a changing use pattern for the area.

The proposed zone change for the subject property **does not comply** with review criterion 2 under the current future land use map designations but would **comply** if the concurrent application for future land use map designation change is approved.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The property will be zoned AG-Agricultural upon annexation. The AG zone is intended as a holding zone pending more specific development actions. Most urban-style zones will allow a wider variety of uses than the current zone district. The proposed LI zone has limited design standards and allows a wide variety of uses.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The large acreages allows for a variety of street network possibilities. The LI zone allows more flexibility in street network than some of the more dense residential or commercial zones.

Major streets are designated on the future land use plan running around this property. Future development will be expected to provide for any major streets planned in this area.

No changes to the current street network are proposed. Accesses will not be changed with the zone change. Infrastructure (streets and utilities) exist in the area. Depending on the proposed use, traffic impacts could be significant.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The UDC indicates that the LI district is intended for environmentally-controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses. The LI district is applicable to larger land areas that are capable of providing substantial buffers to adjacent sites. This district is most appropriate in areas with access to major regional transportation infrastructure, specifically areas designated Industrial in the Comprehensive Plan, and in limited applications within Mixed-use Employment areas.

The subject property is a larger area capable of providing buffers and could be designated Mixed-use Employment by the proposed comprehensive plan amendment. However the only current

access to the site is through a residential neighborhood and no ready access to major regional transportation infrastructure is currently available. This site would need to construct or expand roadways or accesses with development to be connected to major regional transportation infrastructure. If the area is changed to be designated 'Mixed Use Employment', the proposed zoning may be able to meet the intent and applicability of the LI zone in the UDC..

The proposed zone change for the subject property **does not comply** with review criterion 5 under the current future land use map designation but largely **complies** if the concurrent application for future land use map designation change is approved.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

There is no specific development proposed for this parcel. The LI zone allows both industrial and commercial uses. The property is a large lot that would allow for many different uses.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major comments were received in regard to the proposed zone change that have not been covered under other review criteria.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

Cheyenne has had documented housing challenges and taking land anticipated for majority residential development and zoning that land Light Industrial would adversely affect the general welfare of the community. However, if the future land use designation changes and the land is no longer anticipated for residential development, City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **does not comply** with review criterion 8 under the current future land use map designation but would **comply** if the concurrent application for future land use map designation change is approved.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

PUBLIC NOTICE AND PUBLIC COMMENTS RECEIVED:

Although projects have public notice and the opportunity for public comments, projects are required to be approved or denied based on the review criteria (listed above). Public comments relevant to the review criteria may assist the review and discussion on the application.

The public was given notice of the project in the following ways:

- **Legal Notice** in the Wyoming Tribune Eagle published on August 22, 2026.
- **Mailed Notice.** Evidence of mailed notice was provided showing that the letters were mailed on August 13, 2026.
- **Posted Notice.** Evidence of posted notice was provided on September 1, 2026.
- **Internet Posting** on connect.cheyennecity.org on July 13, 2026.

As of the publication of the Staff Report (September 1, 2026), Staff has received three inquiries or comments from the public on this project. The inquiries were about proposed uses and plans for the property. A letter of support was provided to staff from an adjacent neighbor to the west, and the letter is attached to this report. The project page on the website has received 179 views and no comments.

STAFF REVIEW:

Through the review process, review comments were received expressing concerns about the appropriateness of the LI zone at this location.

CONCLUSION:

The application has been submitted concurrently with a proposed future land use map amendment to change the subject property to Mixed-use Employment. Staff's conclusion on the proposal to zone land LI Light Industrial hinges on the appropriateness of the associated future land use map amendment proposal. Should the future land use map amendment be approved, the extension of 'mixed-use employment'-style development would be considered appropriate and the application would largely meet all review criteria. On the other hand, if the future land use map amendment is denied, this request would fail to meet review criteria 1, 2, 5, and 8.

Staff's discussion and recommendation on the proposed future land use map amendment are found in that application's staff report.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation** [with future land use map amendment approval]).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated. (**Staff Recommendation** [without future land use map amendment approval])
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

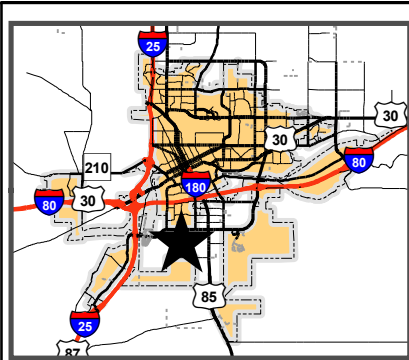
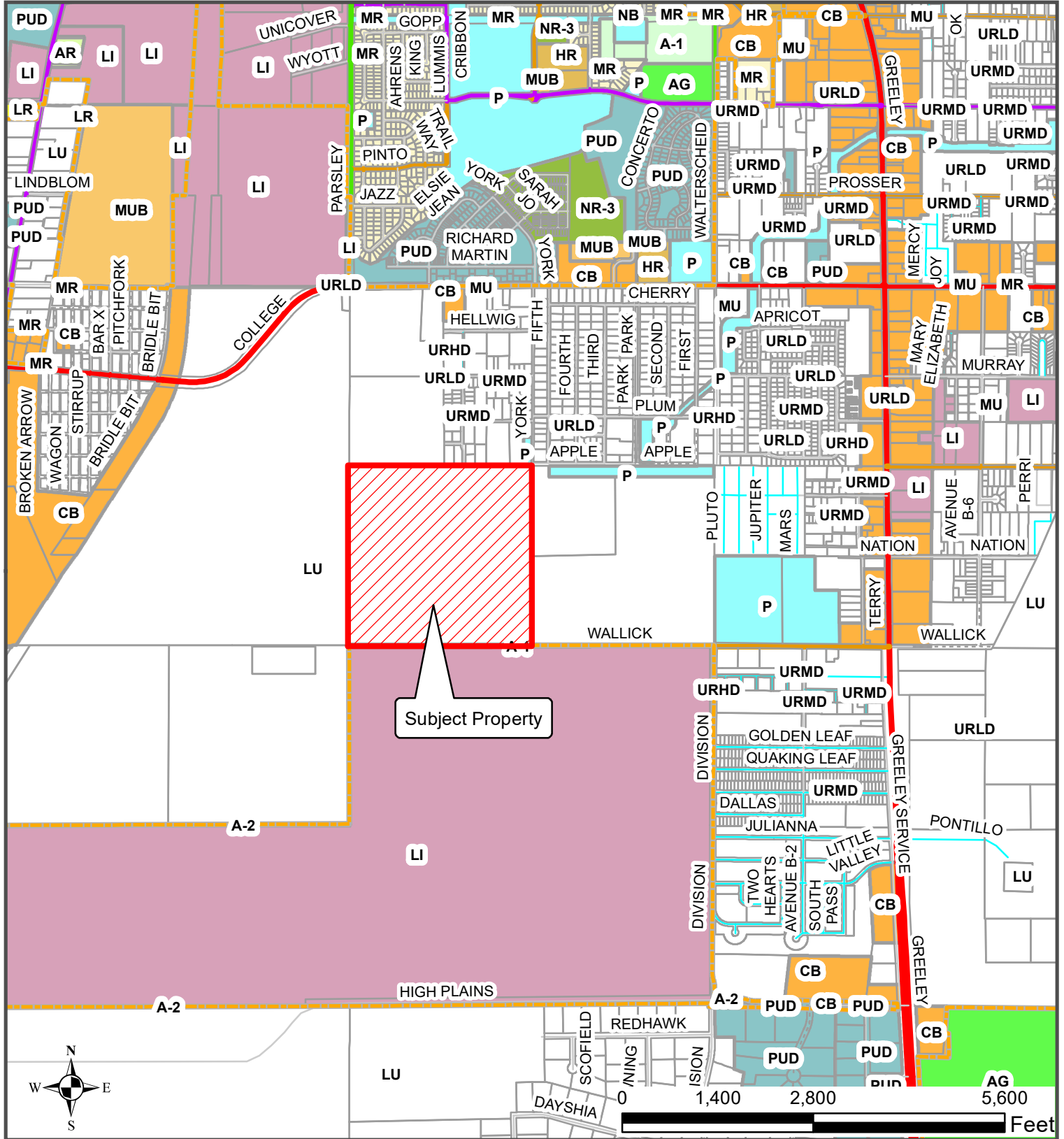
STAFF RECOMMENDATION:

Should the future land use map amendment be approved, staff recommends approval of the rezoning of the property from AG to LI.

Should the future land use map amendment fail, staff recommends denial of the rezoning of the property from AG to LI.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Master Application
4. Applicant Provided Zone Change Map
5. Letter from Neighbor

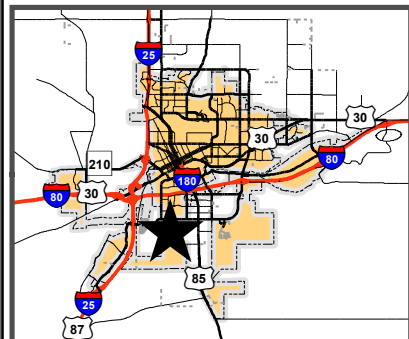
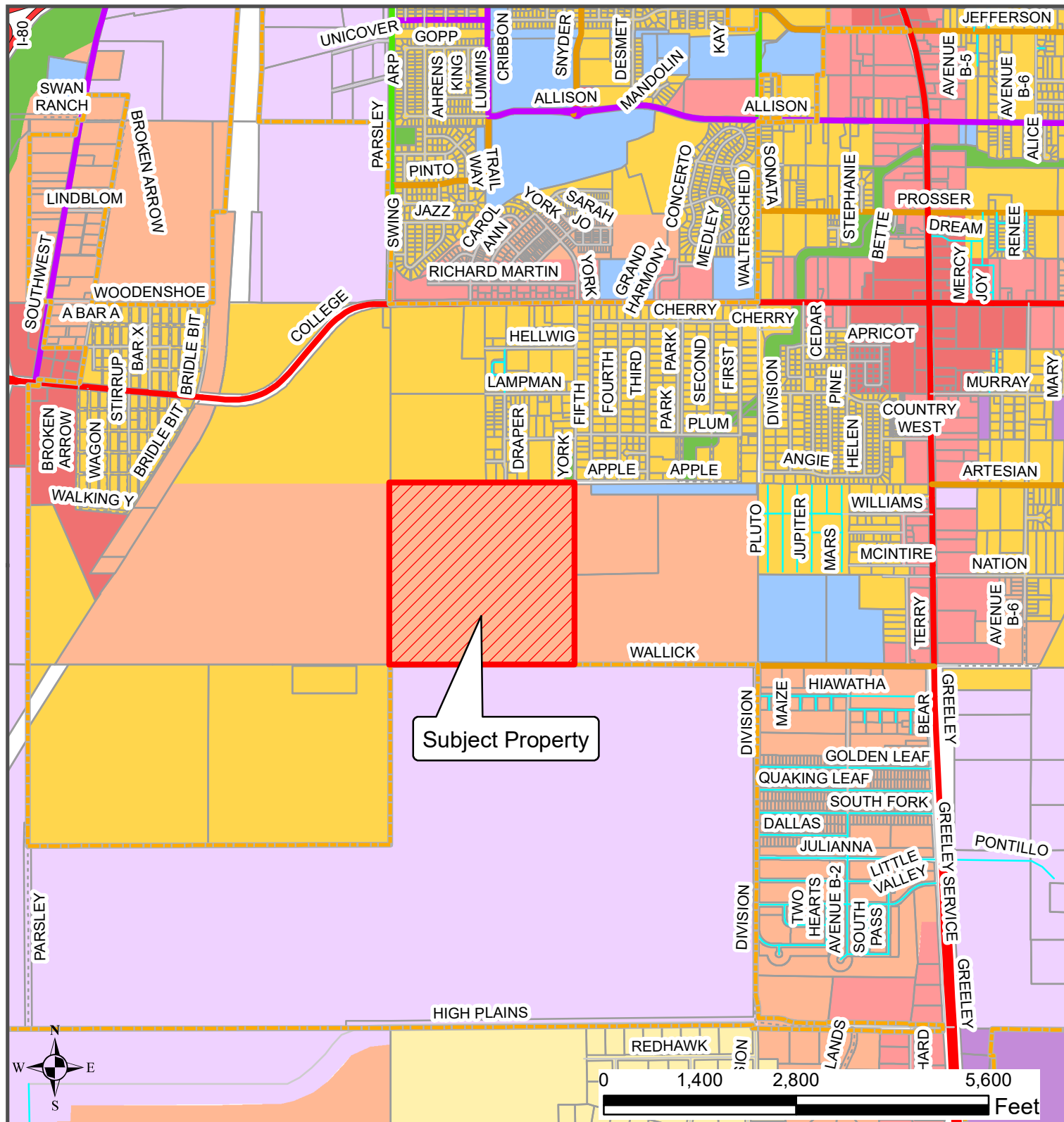


Attachment 1: Zoning Map PUDC-26-175

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-26-175

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Ownership		

Record No: PUDC-26-175

Zoning Map Amendment

Status: Active

Submitted On: 7/8/2026

Primary Location

O DRAPER RD
Cheyenne, WY 82007

Owner

ORCHARD HILLS LLC
506 SHOSHONI ST CHEYENNE, WY 82009

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* ?

Orchard Hills

Proposed Zoning* ?

LI Light Industrial

Project Description or notes ?

Annexation and Zone Change from County LU to City LI

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Trey Rinne
Jul 8, 2026

Attachments

	Proposed Zoning Map 5081 ZONE CHANGE.pdf Uploaded by Trey Rinne on Jul 8, 2026 at 3:03 PM	REQUIRED
	Letter of Authorization Orchard Hills_Letter of Authorization.pdf Uploaded by Trey Rinne on Jul 8, 2026 at 3:03 PM	REQUIRED
	Draft Neighbor Notification Letter Orchard Hills Zone Change to LI_Notification.docx Uploaded by Trey Rinne on Jul 8, 2026 at 3:03 PM	REQUIRED
	Neighbor Notification List Orchard Hills Neighbor List.xlsx Uploaded by Trey Rinne on Jul 8, 2026 at 3:03 PM	REQUIRED
	Photos of Posted Notice IMG_2596.jpeg Uploaded by Trey Rinne on Sep 1, 2026 at 1:35 PM	
	Application Letter Application Letter.pdf Uploaded by Connor White on Jul 20, 2026 at 9:48 AM	

Re: Letter of Support for the Orchard Hills Project and "LI" zoning.

To Whom It May Concern:

I, Joseph D. SARA, own the property 2275 West College Dr.

My property is directly adjacent to the Orchard Hills Property. I hereby support the Orchard Hills annexation and zoning for Light Industrial ("LI") use. I hereby oppose that the Orchard Hills property be zoned residential.

Being a direct adjacent landowner, the development of Orchard Hills property affects me and the future of my property more than anyone else.

As such, I support the annexation and LI zoning for the following reasons:

- I support a single "light industrial" use of the adjacent property over dense housing and support this area trending towards light industrial development.
- I support the light industrial use be on City of Cheyenne water and sewer utilities rather than on well and septic systems.
- I recognize that there are direct benefits that my property will receive as a result of the Orchard Hills property being annexed and developed with a light industrial use that would not be possible if the Orchard Hills property be zoned residential.

For the foregoing reasons, I support the annexation of the Orchard Hills property and that it be zoned LI ("light industrial").

LANDOWNER

Signed: 

Name: Joseph D. SARA